

Court No. - 36

Case :- WRIT - C No. - 50372 of 2013

Petitioner :- Rajeev Kumar

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Vijay Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

As prayed by the learned counsel for the petitioner, put up day after tomorrow as a fresh case.

Order Date :- 18.9.2013

dps

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

Court No. - 36

Case :- WRIT - C No. - 50372 of 2013

Petitioner :- Rajeev Kumar

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- Vijay Tripathi

Counsel for Respondent :- C.S.C.

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

Heard counsel for the petitioner, learned standing counsel for respondent no.1 and Sri Ashutosh Srivastava, advocate for respondents 2 and 3.

The petitioner claims to be purchaser of flat no. G-2 Apex Apartment, Adan Bagh, Dayal Bagh, Agra built over plot no. 23. He had applied for 5 KV electricity connection to his flat which was sanctioned by respondent no. 3 which is a distribution franchisee of Dakshinanchal Vidyut Vitran Nigam Ltd. According to the term and conditions whereof, petitioner was called upon to deposit Rs.1,74,811/- and petitioner has deposited the entire amount vide receipt dated 30.4.2013 filed alongwith the writ petition. The grievance of the petitioner is that inspite of having deposited the entire amount as demanded by the respondents, electricity connection is not being released in his favour.

Sri Ashutosh Srivastava, advocate appearing for respondent nos. 2 and 3 after obtaining instructions has stated that there are 11 flats in Apex Apartment and electricity connection to a Multi-storied Buildings can only be provided under clause 4.9 of the Uttar Pradesh Electricity Supply Code, 2005. He submits that since the builder has neither applied nor deposited the cost as per clause 4.9 of the Code, 2005 and therefore, electricity connection is not being released.

Clause 4.9(a) of the Electricity Supply Code reads as under :-

(a). Electricity connection at single point of supply with single point metering shall be provided to a new domestic / non-domestic Multi-storied Buildings / Multiplex / Marriage Halls / Cooperative Group Housing Societies/ Colonies, with load exceeding 25 KW. However this shall not restrict the individual owner from applying for individual connection, and the licensee shall sanction the connection to such applicant at L.T.

It is evident therefrom that clause 4.9(a) is in two parts. If the application is submitted by builder or by society of flat owners for load exceeding 25 KW, it will come under the first part of clause 4.9(a). However, in case the application is not made by the builder or society but by the individual owner for individual connection as in the instant case, the licensee is bound to sanction the same to such applicant at L.T.

Perusal of the application filed by the petitioner demonstrates that the petitioner has applied for providing 5 KV load at L.T. for his individual flat and not to the entire building and therefore, we are prima facie of the opinion that the petitioner is covered by second part of clause 4.9(a) of the Code. We notice that in case electricity connection could not have been given to the petitioner, there was no justification on the part of the respondent nos. 2 and 3 to handover the estimate to the petitioner and realise whooping sum of Rs.1,74,811/-.

In view of aforesaid facts and circumstances, we issue an

interim mandamus directing respondent nos. 2 and 3 to release electricity connection of 5 KV at L.T. in the individual name of petitioner within a period of two weeks from today or they will show cause by filing a counter affidavit justifying their action in realising Rs.1,74,811/- from the petitioner and yet not releasing the electricity connection in favour of the petitioner.

List the matter on 7th October, 2013 amongst the top five cases.

Sri Ashutosh Srivastava, advocate will communicate this order to respondent nos. 2 and 3 for necessary compliance. Name of Sri Ashutosh Srivastava, advocate shall be shown in the cause list as counsel for respondents when the case is next listed.

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

Order Date :- 23.9.2013

skv



2025:AHC:191255-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 50372 of 2013

Rajeev Kumar

.....Petitioner(s)

Versus

State Of U.P. Thru Secy. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Vijay Tripathi
Counsel for Respondent(s)	:	Ashutosh Srivastava

Court No. - 21

HON'BLE MANOJ KUMAR GUPTA, J.

HON'BLE SIDDHARTH NANDAN, J.

1. This case is listed under the caption 'Oldest Pending Cases in this High Court, for Priority Hearing'.
2. None present to press the petition.
3. **Dismissed** for want of prosecution.

(Siddharth Nandan,J.) (Manoj Kumar Gupta,J.)

October 30, 2025

Ankit.